

7.	AMERICAN EXPRESS NATIONAL BANK VS. YOUNG 2024-01435667	MOTION TO SET ASIDE/VACATE DISMISSAL Plaintiff American Express National Bank’s Motion to Set Aside Dismissal and Enter Judgment is GRANTED. The dismissal of the entire action is set aside and judgment is entered in Plaintiff’s favor and against Defendants in the sum of \$292,893.21 including costs. The Court retained jurisdiction pursuant to Code of Civil Procedure section 664.6. (Dyle Decl., Ex. A, ¶ 18.) Defendants breached the Settlement Agreement by failing to make timely payments under the Agreement. Defendants agreement to pay Plaintiff \$50,000 per month for four months beginning in May 2025 and ending in August 2025. (Dyle Decl., Ex. A, ¶ 6.) Defendants never made any payments under the settlement agreement. (Dyle Decl., ¶¶ 7-10.)
8.	SHEEHAN VS. SHEEHAN 2024-01414691	ORDER TO SHOW CAUSE RE: CONTEMPT The Order to Show Cause Re: Contempt is CONTINUED to 9/4/26 at 9:00 a.m. in Department C32. Plaintiff/Cross-Defendant Colleen Sheehan is ORDERED to return possession of the real property located at 2247 Meyer Place, Costa Mesa, CA 92627 and the ‘Ferraris Online’ YouTube channel before the continued hearing date. The parties may meet and confer regarding the specific manner and method of return. <u>Legal Standard</u> “The essential facts to establish contempt for violation of a court order are ‘(1) the making of the order, (2) knowledge of the order, (3) ability of the respondent to render compliance, and (4) willful disobedience of the order.’ [Citation]” (<i>Moore v. Superior Court of Orange County</i> (2020) 57 Cal.App.5th 441, 456.) When a contempt is not committed in the immediate view and presence of the court, or of the judge at chambers, an affidavit must be presented to the court or judge of the facts constituting the contempt, or a statement of facts by the referees, arbitrators, or other judicial officers. (Code Civ. Proc., § 1211(a).) Once an affidavit has been filed, an ex parte order to show cause will be issued commanding the accused to appear before the court and answer the charges. (Code Civ. Proc., § 1212.) When the party charged with the contempt appears, the court or judge must proceed to investigate the charge. The court or judge must hear any answer which the accused may make, and may examine witnesses for or against him or her. The hearing may be adjourned from time to time if necessary. (Code Civ. Proc., § 1217.) The party charged with contempt is entitled to a hearing at which they may present any appropriate defenses, either by affidavits or witnesses, or both. (<i>Hotaling v. Superior Court, City and County of San Francisco</i> (1923) 191 Cal. 501.) After the evidence has been presented, the court must determine whether the

person proceeded against is guilty of the contempt charged. (Code Civ. Proc., § 1218(a).)

The defenses that may be asserted in a contempt proceeding include:
(1) invalidity of the judgment or order violated;
(2) no notice or knowledge of the judgment or order violated;
(3) inability to comply with the judgment or order violated; and
(4) good faith violation coupled with a willingness to comply with the judgment or order at the time of the hearing. (8 Witkin, California Proc. (4th ed.), Enforcement of Judgment §§ 341 to 345.)

If the person charged with contempt is found guilty, they may be punished by a fine not exceeding \$1,000 or by imprisonment for not more than five days, or both. (Code Civ. Proc., § 1218(a) (emphasis added.)

Merits

The Interlocutory Judgment held regarding the quiet title claims: “Colleen Sheehan has no legal or equitable interest in the real property located at 2247 Meyer Place, Costa Mesa, CA 92627. ... Michael W. Sheehan as Trustee of the Michael W. Sheehan Revocable Trust Holds title in fee simple to the real property located at 2247 Meyer Place, Costa Mesa, CA 92627, and that Colleen Sheehan, nor any other party claiming under her, has an ownership, possessory, equitable or other interest in 2247 Meyer Place, Costa Mesa, CA 92627 adverse to Cross-Complainant Michael Sheehan. ... Colleen Sheehan, as of the date this Judgment is entered, is in possession of the 2247 Meyer Place, Costa Mesa, CA 92627 property without the consent of Michael Sheehan.” (ROA 499, ¶¶ 10-11.) “The Court grants Cross-Complainants’ claim for Injunctive Relief. [¶] b. The ‘Ferraris Online’ YouTube channel [sic] is the sole property of Michael W. Sheehan. Colleen Sheehan nor any other party has an ownership, possessory, equitable or other interest in the ‘Ferraris Online’ YouTube channel. [¶] The real property located at 2247 Meyer Place, Costa Mesa, CA 92627, is the sole property of Michael W. Sheehan as Trustee of the Michael W. Sheehan Revocable Trust. Colleen Sheehan, nor any other party claiming under her, has an ownership, possessory, equitable or other interest in 2247 Meyer Place, Costa Mesa, CA 92627.” (ROA 499, ¶ 15.)

The Court finds Plaintiff’s argument that she can retain possession of the real property and YouTube channel after judgment was rendered against her stating she has no possessory interest is without merit. Her arguments that the judgment did not list every minute detail and step to returning the property are also without merit. The Court finds requiring judgments to have strict guidelines to enforce judgments would only lead to additional burdens on parties and the court. However, the **Court shall provide Plaintiff one last opportunity to cure her noncompliance.**